

UTT Chapter 14 Test

MULTIPLE CHOICE [Each question is worth 1 point.]

Choose the correct answer from the choices below.

- 1. Which of the following ideas have influenced the Secular view of law?**
 - a. Evolution
 - b. Materialism
 - c. Naturalism
 - d. All of the above [14.4]
 - e. A and B only

- 2. According to Secularism, law should be based on what?**
 - a. Morality
 - b. Precedent
 - c. God
 - d. None of the above [14.4]
 - e. A and B only

- 3. What do Marxists assume about law?**
 - a. Law is used to oppress the working class.
 - b. Law is only necessary because of economic inequalities.
 - c. Law will be unnecessary under communism.
 - d. All of the above [14.5]
 - e. A and B only

- 4. Which of the following worldviews deny a connection between law and an objective standard of morality?**
 - a. Secularism
 - b. Marxism
 - c. Postmodernism
 - d. All of the above [14.4–14.6]
 - e. A and B only

- 5. According to Postmodernism, the best legal decisions are reached through what?**
 - a. Logic, reason, and objectivity
 - b. Transcendent moral standards
 - c. The unmasking of oppressive power structures [14.6]
 - d. The application of divine principles
 - e. A and B only

6. **Shariah law is derived from which of the following sources?**
- a. Quran
 - b. *Sunnah*
 - c. *Ijma*
 - d. *Qiyas*
 - e. All of the above [14.8]
7. **Which of the following are permitted under shariah law?**
- a. Killing of homosexuals, adulterers, and apostates
 - b. Whipping, slavery, and oppression for non-converts
 - c. Amputation for theft
 - d. All of the above [14.8]
 - e. A and B only
8. **Which of the following worldviews deny that humanity has a sin nature?**
- a. Secularism
 - b. Marxism
 - c. Islam
 - d. All of the above [14.4–14.8]
 - e. A and B only
9. **The Christian concept of law is built upon which of the following assumptions?**
- a. Humanity is inherently sinful.
 - b. Human beings were created in God's image.
 - c. Government is an institution created by God.
 - d. All of the above [14.9]
 - e. A and B only

TRUE OR FALSE [Each question is worth 1 point.]

Indicate if each statement is true or false. If the statement is false, alter it to make it true.

10. **To truly be free, human beings must ignore laws that restrain our freedom.**

False: abide by [14.2]

11. **Law tells us what is right and wrong; morality establishes punishment for those violating moral mandates and remedies for those harmed.**

False: Morality tells us what is right and wrong; law [14.3]

12. The U.S. constitution assumes that laws are created, not discovered.

False: discovered, not created [14.3]

13. According to legal positivism, law is ultimately whatever those in power posit it to be.

True [14.4]

14. For the Postmodernist, law is a process of uncovering various forms of oppression.

True [14.6]

15. Postmodernism reduces law to a struggle over political power.

True [14.6]

16. According to New Spirituality, criminals are not guilty of violating a standard of justice, but of falling short in their quest for higher consciousness.

True [14.7]

17. According to the Christian worldview, God reveals only his law, not himself.

False: Islamic [14.8]

18. According to Christianity, the source of divine law is the character and nature of God.

True [14.9]

19. Christianity assumes that all human beings have a general concept of right and wrong.

True [14.9]

FILL-IN-THE-BLANK [Each question is worth 2 points.]

Fill in the missing word to complete each statement.

20. The administrative aspect of the law that focuses on ensuring safety and efficiency is called _____ order [14.3]_____.

21. Tort law [14.3] is a set of laws that establishes remedies for those wronged by others.
22. The enforcement aspect of the law that focuses on reasonable, proper, fair, and equal rules is called justice [14.3].
23. Utilitarianism [14.3] is the belief that we ought to do whatever maximizes happiness and reduces suffering for the greatest number of people.
24. Common law [14.4] is a legal system in which courts reach legal decisions based upon prior judicial precedent reached through common sense and reason.
25. In Marxist states, the laws are created by communist [14.5] party officials on behalf of the working class.
26. Social constructionism [14.6] is the belief that human beings ultimately construct a model of social reality based upon their own subjective experiences and language.
27. To understand law, Christians turn to general [14.9] and special revelation.

SHORT ANSWER [Each question is worth 3 points.]

Answer the following questions with at least one sentence

28. Define law.

Law is the study of ordinances designed to help citizens coexist peacefully.
[14.3]

29. Define legal positivism.

Legal positivism is the belief that laws are rules created by human authorities and that there is no inherent or necessary connection between law and morality. [14.3]

30. Define proletariat law.

Proletariat law is a system of laws shaped by communist party officials that are intended to promote the interests of the working class over the bourgeoisie. [14.5]

31. Define critical legal studies.

Critical legal studies is the practice of deconstructing laws in order to discover their subjective meaning and biased intent. [14.6]

32. Define self-law.

Self-law is the legal perspective that maintains actions are lawful only if honorable to the god within and unlawful if imposed by an outside authority. [14.7]

33. Define shariah law.

Shariah law is the moral and legal code that governs the lives of Muslims (e.g., diet, hygiene, prayer, contracts, business, crime, and punishment). [14.8]

34. Define natural law.

Natural law is the belief that laws are rules based upon on an internal code of morality possessed by all people. [14.3]

ESSAY [Each question is worth 4 points.]

Answer the following questions with at least one paragraph.

35. If what the Nazis did was legal, then on what basis were Nazis convicted for their crimes in the Nuremberg Trials?

Everything the Nazis did was legal under German law at the time. Just because something is legal, however, does not make it right. The Allied forces brought charges against Nazis leaders on the basis that they committed crimes against humanity. That is, the Nazis were guilty of violating clear ethical standards known and recognized by all of mankind. Laws should be based upon what is moral. Criminals cannot escape this fact by merely creating laws to justify their immoral intentions. [14.3]